

1 **SENATE FLOOR VERSION**

2 February 10, 2026

3 SENATE BILL NO. 1260

By: Hines and Hamilton of the
Senate

4 and

5 Harris of the House
6

7
8 An Act relating to pardons and paroles; amending 21
9 O.S. 2021, Section 13.1, as last amended by Section
10 1, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025,
11 Section 13.1), which relates to required service of
12 minimum percentage of sentence; removing certain
13 offenses; conforming language; amending 21 O.S. 2021,
14 Section 748, as last amended by Section 20, Chapter
15 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748),
16 which relates to human trafficking; prohibiting
17 certain parole eligibility and earning of credits;
18 conforming language; updating statutory language;
19 updating statutory reference; amending 21 O.S. 2021,
20 Section 1031, as last amended by Section 397, Chapter
21 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1031),
22 which relates to punishment for violations;
23 prohibiting certain parole eligibility and earning of
24 credits; conforming language; updating statutory
references; updating statutory language; repealing 21
O.S. 2021, Section 13.1, as amended by Section 5,
Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section
13.1), which relates to required service of minimum
percentage of sentence; repealing 21 O.S. 2021,
Section 13.1, as last amended by Section 2, Chapter
18, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1),
which relates to required service of minimum
percentage of sentence; repealing 21 O.S. 2021,
Section 13.1, as last amended by Section 1, Chapter
352, O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1),
which relates to required service of minimum
percentage of sentence; repealing 21 O.S. 2021,
Section 748, as last amended by Section 2, Chapter
291, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748),
which relates to human trafficking; repealing 21 O.S.

2021, Section 1031, as last amended by Section 5,
Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2025, Section
1031), which relates to punishment for violations;
and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 13.1, as
last amended by Section 1, Chapter 162, O.S.L. 2025 (21 O.S. Supp.
2025, Section 13.1), is amended to read as follows:

Section 13.1. Persons convicted of:

1. First degree murder as provided for in Section 701.7 of this
title;

2. Second degree murder as provided for in Section 701.8 of
this title;

3. Manslaughter in the first degree as provided for in Section
711 of this title;

4. Poisoning with intent to kill as provided for in Section 651
of this title;

5. Shooting with intent to kill, use of a vehicle to facilitate
use of a firearm, crossbow, or other weapon, assault, battery, or
assault and battery with a deadly weapon or by other means likely to
produce death or great bodily harm, as provided for in Sections 644
and 652 of this title;

6. Assault with intent to kill as provided for in Section 653
of this title;

1 7. Conjoint robbery as provided for in Section 800 of this
2 title;

3 8. Robbery with a dangerous weapon as provided for in Section
4 801 of this title;

5 9. First degree robbery as provided for in Section 797 of this
6 title;

7 10. First degree rape as provided for in Section 1111 or 1114
8 of this title;

9 11. First degree arson as provided for in Section 1401 of this
10 title;

11 12. First degree burglary as provided for in Section 1431 of
12 this title;

13 13. Bombing as provided for in Section 1767.1 of this title;

14 14. Any crime against a child as provided for in Section 843.5
15 of this title;

16 15. Forcible sodomy as provided for in Section 888 of this
17 title;

18 16. Child sexual abuse material or aggravated child sexual
19 abuse material as provided for in Section 1021.2, 1021.3, 1024.1,
20 1024.2, or 1040.12a of this title;

21 17. ~~Child sex trafficking as defined in Section 1030 of this~~
22 ~~title;~~

23 ~~18.~~ Lewd molestation of a child as provided for in Section 1123
24 of this title;

1 ~~19.~~ 18. Abuse of a vulnerable adult as defined in Section 10-
2 103 of Title 43A of the Oklahoma Statutes;

3 ~~20.~~ 19. Aggravated trafficking as provided for in subsection C
4 of Section 2-415 of Title 63 of the Oklahoma Statutes;

5 ~~21.~~ 20. Aggravated assault and battery, as provided for in
6 Section 646 of this title, upon any person defending another person
7 from assault and battery; or

8 ~~22. Human trafficking as defined in Section 748 of this title,~~

9 21. Discharging a firearm at or into a dwelling or building
10 used for public or business purposes, as provided for in Section
11 1289.17A of this title,

12 or any attempt, conspiracy, or solicitation thereof, shall be
13 required to serve not less than eighty-five percent (85%) of any
14 sentence of imprisonment imposed by the judicial system prior to
15 becoming eligible for consideration for parole. Persons convicted
16 of these offenses shall not be eligible for earned credits or any
17 other type of credits which have the effect of reducing the length
18 of the sentence to less than eighty-five percent (85%) of the
19 sentence imposed.

20 SECTION 2. AMENDATORY 21 O.S. 2021, Section 748, as last
21 amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,
22 Section 748), is amended to read as follows:

23 Section 748. A. As used in ~~Sections 748~~ this section and
24 Section 748.2 of this title:

1 1. "Coercion" means compelling, forcing, or intimidating a
2 person to act by:

- 3 a. threats of harm or physical restraint against any
4 person,
- 5 b. any act, scheme, plan, or pattern intended to cause a
6 person to believe that performing, or failing to
7 perform, an act would result in serious physical,
8 financial, or emotional harm or distress to or
9 physical restraint against any person,
- 10 c. the abuse or threatened abuse of the law or legal
11 process,
- 12 d. knowingly destroying, concealing, removing,
13 confiscating, or possessing any actual or purported
14 passport, labor or immigration document, or other
15 government identification document, including, but not
16 limited to, a driver license or birth certificate, of
17 another person,
- 18 e. facilitating or controlling a person's access to any
19 addictive or controlled substance other than for legal
20 medical purposes,
- 21 f. blackmail,
- 22 g. demanding or claiming money, goods, or any other thing
23 of value from or on behalf of a prostituted person

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1 where such demand or claim arises from or is directly
2 related to the act of prostitution,

3 h. determining, dictating, or setting the times at which
4 another person will be available to engage in an act
5 of prostitution with a third party,

6 i. determining, dictating, or setting the places at which
7 another person will be available for solicitation of,
8 or to engage in, an act of prostitution with a third
9 party, or

10 j. determining, dictating, or setting the places at which
11 another person will reside for purposes of making such
12 person available to engage in an act of prostitution
13 with a third party;

14 2. "Commercial sex" means any form of commercial sexual
15 activity such as sexually explicit performances, prostitution,
16 participation in the production of pornography, performance in a
17 strip club, or exotic dancing or display;

18 3. "Debt bondage" means the status or condition of a debtor
19 arising from a pledge by the debtor of his or her personal services
20 or of those of a person under his or her control as a security for
21 debt if the value of those services as reasonably assessed is not
22 applied toward the liquidation of the debt or the length and nature
23 of those services are not respectively limited and defined;

1 4. "Human trafficking" means modern-day slavery that includes,
2 but is not limited to, extreme exploitation and the denial of
3 freedom or liberty of an individual for purposes of deriving benefit
4 from that individual's commercial sex act or labor;

5 5. "Human trafficking for labor" means:

6 a. recruiting, enticing, harboring, maintaining,
7 transporting, providing, or obtaining, by any means,
8 another person through deception, force, fraud, threat
9 or coercion ~~ex~~ for purposes of engaging the person in
10 labor, or

11 b. benefiting, financially or by receiving anything of
12 value, from participation in a venture that has
13 engaged in an act of trafficking for labor;

14 6. "Human trafficking for commercial sex" means:

15 a. recruiting, enticing, harboring, maintaining,
16 transporting, providing, or obtaining, by any means,
17 another person through deception, force, fraud,
18 threat, or coercion for purposes of engaging the
19 person in a commercial sex act,

20 b. recruiting, enticing, harboring, maintaining,
21 transporting, providing, purchasing, or obtaining, by
22 any means, a minor for purposes of engaging the minor
23 in a commercial sex act, or
24

1 c. benefiting, financially or by receiving anything of
2 value, from participating in a venture that has
3 engaged in an act of trafficking for commercial sex;

4 7. "Legal process" means the criminal law, the civil law, or
5 the regulatory system of the federal government, any state,
6 territory, district, commonwealth, or trust territory therein, and
7 any foreign government or subdivision thereof and includes legal
8 civil actions, criminal actions, and regulatory petitions or
9 applications;

10 8. "Minor" means an individual under eighteen (18) years of
11 age; and

12 9. "Victim" means a person against whom a violation of any
13 provision of this section has been committed.

14 B. It shall be unlawful to knowingly engage in human
15 trafficking.

16 C. 1. Any person violating the provisions of this section
17 shall, upon conviction, be guilty of a Class A2 felony offense
18 punishable by imprisonment in the custody of the Department of
19 Corrections for a term ~~of~~ not less than five (5) years or for life,
20 or by a fine ~~of~~ not more than One Hundred Thousand Dollars
21 (\$100,000.00), or by both such ~~fine~~ imprisonment and ~~imprisonment~~
22 fine.

23 2. Any person violating the provisions of this section where
24 the victim of the offense is under eighteen (18) years of age at the

1 time of the offense shall, upon conviction, be guilty of a Class A2
2 felony offense punishable by imprisonment in the custody of the
3 Department of Corrections for a term ~~of~~ not less than ~~fifteen (15)~~
4 ten (10) years or, for life, or for life without parole, or by a
5 fine ~~of~~ not more than Two Hundred Fifty Thousand Dollars
6 (\$250,000.00), or by both such ~~fine imprisonment~~ and ~~imprisonment~~
7 fine.

8 3. The court shall also order the defendant to pay restitution
9 to the victim as provided in Section 991f of Title 22 of the
10 Oklahoma Statutes. In addition, the court shall require the
11 defendant to pay for a psychological evaluation to determine the
12 extent of counseling necessary for the human trafficking victim and
13 any necessary psychological counseling deemed necessary to
14 rehabilitate the victim. Such evaluations and counseling may be
15 performed by psychiatrists, psychologists, licensed professional
16 counselors, or social workers.

17 4. If the person is convicted of human trafficking, the person
18 shall ~~serve eighty-five percent (85%) of the sentence before being~~
19 not be eligible for parole consideration or any earned credits. The
20 terms of imprisonment specified in this subsection shall not be
21 subject to statutory provisions for suspension, deferral, or
22 probation, or state correctional institution earned credits accruing
23 from and after November 1, 1989, except for the achievement earned
24 credits authorized by subsection H of Section 138 of Title 57 of the

1 Oklahoma Statutes. To qualify for such achievement earned credits,
2 such inmates must also be in compliance with the standards for Class
3 level 2 behavior, as defined in subsection D of Section 138 of Title
4 57 of the Oklahoma Statutes.

5 D. It is an affirmative defense to prosecution for a criminal,
6 youthful offender, or delinquent offense that, during the time of
7 the alleged commission of the offense, the defendant or alleged
8 youthful offender or delinquent was a victim of human trafficking.

9 E. The consent of a victim to the activity prohibited by this
10 section shall not constitute a defense.

11 F. Lack of knowledge of the age of the victim shall not
12 constitute a defense to the activity prohibited by this section with
13 respect to human trafficking of a minor.

14 SECTION 3. AMENDATORY 21 O.S. 2021, Section 1031, as
15 last amended by Section 397, Chapter 486, O.S.L. 2025 (21 O.S. Supp.
16 2025, Section 1031), is amended to read as follows:

17 A. Except as provided in subsection B, C, D, or E of this
18 section, any person violating any of the provisions of paragraph 1,
19 2, 3, or 5 of subsection A of Section 1029 ~~or Section 1030~~ of this
20 title shall, upon conviction, be guilty of a misdemeanor and shall
21 be punished by imprisonment in the county jail for not less than
22 thirty (30) days nor more than one (1) year or by fines as follows:
23 a fine not more than Two Thousand Five Hundred Dollars (\$2,500.00)
24 upon the first conviction for violation of any of such provisions, a

1 fine not more than Five Thousand Dollars (\$5,000.00) upon the second
2 conviction for violation of any of such provisions, and a fine not
3 more than Seven Thousand Five Hundred Dollars (\$7,500.00) upon the
4 third or subsequent convictions for violation of any of such
5 provisions, or by both such imprisonment and fine. In addition, the
6 court may require a term of community service not less than forty
7 (40) hours nor more than eighty (80) hours. The court in which any
8 such conviction is had shall notify the county superintendent of
9 public health of such conviction.

10 B. Any person who engages in an act of prostitution with
11 knowledge that he or she is infected with the human immunodeficiency
12 virus shall, upon conviction, be guilty of a Class D1 felony offense
13 punishable by imprisonment as provided for in subsections B through
14 ~~F~~ E of Section 20N of this title.

15 C. Any person who engages in an act of child ~~prostitution~~ sex
16 trafficking as defined in Section 1030 of this title shall, upon
17 conviction, be guilty of a Class B1 felony offense punishable by
18 imprisonment in the custody of the Department of Corrections for not
19 more than ten (10) years and by fines as follows: a fine not more
20 than Five Thousand Dollars (\$5,000.00) upon the first conviction, a
21 fine not more than Ten Thousand Dollars (\$10,000.00) upon the second
22 conviction, and a fine not more than Fifteen Thousand Dollars
23 (\$15,000.00) upon the third or subsequent convictions. Any person
24

1 convicted pursuant to this subsection shall not be eligible for
2 parole consideration or any earned credits.

3 D. Any person violating any of the provisions of Section 1029
4 ~~or 1030~~ of this title within one thousand (1,000) feet of a school
5 or church shall, upon conviction, be guilty of a Class D1 felony
6 offense and shall be punished by imprisonment as provided for in
7 subsections B through ~~F~~ E of Section 20N of this title, or by fines
8 as follows: a fine not more than Two Thousand Five Hundred Dollars
9 (\$2,500.00) upon the first conviction for violation of any of such
10 provisions, a fine not more than Five Thousand Dollars (\$5,000.00)
11 upon the second conviction for violation of any of such provisions,
12 and a fine not more than Seven Thousand Five Hundred Dollars
13 (\$7,500.00) upon the third or subsequent convictions for violation
14 of any of such provisions, or by both such imprisonment and fine.
15 In addition, the court may require a term of community service not
16 less than forty (40) hours nor more than eighty (80) hours. The
17 court in which any such conviction is had shall notify the county
18 superintendent of public health of such conviction.

19 E. Any person violating paragraph 4 of subsection A of Section
20 1029 of this title shall, upon conviction, be guilty of a Class B4
21 felony offense and shall be punished in accordance with the
22 provisions of subsection B of Section 1040.57 of this title.

1 SECTION 4. REPEALER 21 O.S. 2021, Section 13.1, as
2 amended by Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,
3 Section 13.1), is hereby repealed.

4 SECTION 5. REPEALER 21 O.S. 2021, Section 13.1, as last
5 amended by Section 2, Chapter 18, O.S.L. 2025 (21 O.S. Supp. 2025,
6 Section 13.1), is hereby repealed.

7 SECTION 6. REPEALER 21 O.S. 2021, Section 13.1, as last
8 amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025,
9 Section 13.1), is hereby repealed.

10 SECTION 7. REPEALER 21 O.S. 2021, Section 748, as last
11 amended by Section 2, Chapter 291, O.S.L. 2025 (21 O.S. Supp. 2025,
12 Section 748), is hereby repealed.

13 SECTION 8. REPEALER 21 O.S. 2021, Section 1031, as last
14 amended by Section 5, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2025,
15 Section 1031), is hereby repealed.

16 SECTION 9. This act shall become effective November 1, 2026.

17 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
18 February 10, 2026 - DO PASS
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